

SCALIA, J., dissenting

ferentiated and common to all members of the public.” 418 U.S., at 176–177 (internal quotation marks and citations omitted).

It was alleged in *Richardson* that the Government had denied a right conferred by the Constitution, whereas respondents here assert a right conferred by statute—but of course “there is absolutely no basis for making the Article III inquiry turn on the source of the asserted right.” *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 576 (1992). The Court today distinguishes *Richardson* on a different basis—a basis that reduces it from a landmark constitutional holding to a curio. According to the Court, “*Richardson* focused upon taxpayer standing, . . . not voter standing.” *Ante*, at 22. In addition to being a silly distinction, given the weighty governmental purpose underlying the “generalized grievance” prohibition—viz., to avoid “something in the nature of an Athenian democracy or a New England town meeting to oversee the conduct of the National Government by means of lawsuits in federal courts,” 418 U.S., at 179—this is also a distinction that the Court in *Richardson* went out of its way explicitly to eliminate. It is true enough that the narrow question presented in *Richardson* was “[w]hether a federal taxpayer has standing,” *id.*, at 167, n. 1. But the *Richardson* Court did not hold only, as the Court today suggests, that the plaintiff failed to qualify for the exception to the rule of no taxpayer standing established by the “logical nexus” test of *Flast v. Cohen*, 392 U.S. 83 (1968).^{*} The plaintiff’s complaint in *Richardson* had also alleged that he was “‘a member of the electorate,’” 418 U.S., at 167, n. 1, and he asserted injury in that capacity as well.

^{*}That holding was inescapable since, as the Court made clear in another case handed down the same day, “the *Flast* nexus test is not applicable where the taxing and spending power is not challenged” (as in *Richardson* it was not). *Schlesinger v. Reservists Comm. to Stop the War*, 418 U.S. 208, 225, n. 15 (1974).